

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Trevor Hackett	Team: Squad #08	CCRB Case #: 202407850	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 08/04/2024 7:30 PM	Location of Incident: Intersection of East 177th Street and Morris Avenue	18 Mo. SOL 2/4/2026	Precinct: 46		
Date/Time CV Reported Tue, 08/06/2024 2:54 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 08/06/2024 2:54 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Jamal Essafoui	02961	977881	046 PCT
2. PO Anthony Ramirez	24938	978733	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Edyma Luctamar	25362	946515	046 PCT
2. PO Stephen Adekunle	07455	977715	046 PCT
3. PO Natashali Rodriguezluciano	14899	977372	046 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Anthony Ramirez	Abuse: Police Officer Anthony Ramirez stopped § 87(2)(b)	A . Within NYPD Guidelines
B . PO Jamal Essafoui	Abuse: Police Officer Jamal Essafoui stopped § 87(2)(b)	B . Within NYPD Guidelines
C . PO Anthony Ramirez	Force: Police Officer Anthony Ramirez used physical force against § 87(2)(b)	C . Unfounded
D . PO Jamal Essafoui	Force: Police Officer Jamal Essafoui used physical force against § 87(2)(b)	D . Unfounded
E . PO Anthony Ramirez	Abuse: Police Officer Anthony Ramirez threatened § 87(2)(b) with the use of force.	E . Substantiated
F . PO Jamal Essafoui	Abuse: Police Officer Jamal Essafoui detained § 87(2)(b)	F . Substantiated
G . PO Anthony Ramirez	Abuse: Police Officer Anthony Ramirez detained § 87(2)(b)	G . Within NYPD Guidelines
H . PO Jamal Essafoui	Abuse: Police Officer Jamal Essafoui frisked § 87(2)(b)	H . Within NYPD Guidelines
I . PO Jamal Essafoui	Abuse: Police Officer Jamal Essafoui searched § 87(2)(b)	I . Within NYPD Guidelines
J . PO Anthony Ramirez	Abuse: Police Officer Anthony Ramirez frisked § 87(2)(b)	J . Within NYPD Guidelines
K . PO Anthony Ramirez	Abuse: Police Officer Anthony Ramirez searched § 87(2)(b)	K . Within NYPD Guidelines
L . PO Anthony Ramirez	Abuse: Police Officer Anthony Ramirez failed to provide § 87(2)(b) with a business card.	L . Unable to Determine
M . PO Jamal Essafoui	Abuse: Police Officer Jamal Essafoui failed to provide § 87(2)(b) with a business card.	M . Unable to Determine
N . PO Jamal Essafoui	Abuse: Police Officer Jamal Essafoui seized § 87(2)(b) property.	N . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]

Case Summary

On August 6, 2024, § 87(2)(b) called the CCRB and filed this complaint.

On August 4, 2024, at 7:30 PM, § 87(2)(b) was double parked at the intersection of East 177th Street and Morris Avenue in the Bronx. Police Officers Anthony Ramirez and Jamal Essafoui of the 46th Precinct stopped § 87(2)(b) vehicle (**Allegations A and B: Abuse of Authority**). PO Ramirez and PO Essafoui allegedly pulled § 87(2)(b) out of the vehicle (**Allegations C and D: Force, Unfounded**). Once § 87(2)(b) was out of the vehicle, PO Ramirez pointed his taser at him (**Allegation E: Abuse of Authority, Substantiated**). PO Essafoui and PO Ramirez then mistakenly placed § 87(2)(b) under arrest based on what they believed to be a probable cause I-Card (**Allegation F: Abuse of Authority, Substantiated; Allegation G: Abuse of Authority, Within NYPD Guidelines**). PO Essafoui frisked and searched § 87(2)(b) (**Allegations H and I: Abuse of Authority, Within NYPD Guidelines**). PO Ramirez also frisked and allegedly searched § 87(2)(b) (**Allegations J and K: Abuse of Authority, Within NYPD Guidelines**). After placing § 87(2)(b) in a police vehicle, PO Ramirez and PO Essafoui determined that § 87(2)(b) did not, in fact, have a probable cause I-Card and released him. Neither officer offered § 87(2)(b) a business card (**Allegations L and M: Abuse of Authority, Unable to Determine**). PO Essafoui allegedly left the scene without returning § 87(2)(b) identification (**Allegation N: Abuse of Authority, Substantiated**). § 87(2)(b) was not summonsed or arrested as a result of this incident.

§ 87(2)(g), § 87(4-b)

BWC footage was obtained for PO Essafoui, PO Ramirez, PO Stephen Adekunle, PO Rodriguezluciano, and PO Luctamar (**BR 01-04**). The footage is located in IAs #90, 91, 92, and 23. It is summarized in IA #34 (**BR 05**). § 87(2)(b) submitted cellphone footage of the incident, which is located in IA #16 (**BR 07**)

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Anthony Ramirez stopped § 87(2)(b)

Allegation B – Abuse of Authority: Police Officer Jamal Essafoui stopped § 87(2)(b)

Allegation C – Force: Police Officer Anthony Ramirez used force against § 87(2)(b)

Allegation D – Force: Police Officer Jamal Essafoui used force against § 87(2)(b)

Allegation E – Abuse of Authority: Police Officer Anthony Ramirez threatened § 87(2)(b) with the use of force.

Allegation F – Abuse of Authority: Police Officer Jamal Essafoui detained § 87(2)(b)

Allegation G – Abuse of Authority: Police Officer Anthony Ramirez detained § 87(2)(b)

Allegation H – Abuse of Authority: Police Officer Jamal Essafoui frisked § 87(2)(b)

Allegation I – Abuse of Authority: Police Officer Jamal Essafoui searched § 87(2)(b)

Allegation J – Abuse of Authority: Police Officer Anthony Ramirez frisked § 87(2)(b)

Allegation K – Abuse of Authority: Police Officer Anthony Ramirez searched § 87(2)(b)

BWC from PO Ramirez shows, beginning at 00:00, PO Ramirez is standing at the driver's side of § 87(2)(b) vehicle speaking to him. At 01:07, PO Ramirez orders § 87(2)(b) to exit his vehicle and tells him that his license is invalid. § 87(2)(b) states that his cousin is at the location and that she can drive. PO Ramirez tells § 87(2)(b) that he is the one driving the vehicle, so he must exit. § 87(2)(b) denies that he had driven anywhere. At 01:31, § 87(2)(b) exits the vehicle on his own. Neither PO Ramirez nor PO Essafoui make any physical contact with § 87(2)(b) to get him out of the vehicle. § 87(2)(b) asks PO Ramirez what he needs and PO Ramirez tells him to turn around, which he does.

At 02:00, PO Essafoui tells § 87(2)(b) to put his hands behind his back. § 87(2)(b) turns around to face the officers and asks why he is being arrested. PO Essafoui tells him that he has a warrant, which § 87(2)(b) denies. PO Essafoui then tells § 87(2)(b) that he has an I-Card, which § 87(2)(b) denies. PO Essafoui grabs § 87(2)(b) left wrist as the two argue about whether § 87(2)(b) has an I-Card. PO Essafoui does not make any attempt to pull § 87(2)(b) hands behind his back. § 87(2)(b) does not attempt to pull away from PO Essafoui's grasp. At 02:30, § 87(2)(b) accidentally drops his wallet on the ground and PO Essafoui releases him so he can pick it up. At 02:40, PO Essafoui brings up the I-Card on his phone and shows it to § 87(2)(b) asks the officers what the I-Card is about. PO Ramirez tells him that they will discuss it at the stationhouse and that they need to go. He orders § 87(2)(b) to put his hands behind his back. § 87(2)(b) asks why he needs to do so. At 03:10, PO Ramirez can be seen pointing his taser at § 87(2)(b) attempts to call his wife, and PO Ramirez tells him to put the phone down. § 87(2)(b) tells the officers that he will go with them, but he wants to call his wife before they go. At 03:50, PO Ramirez appears to lower his taser. As § 87(2)(b) is attempting to call his wife, PO Essafoui pulls his hands behind his back and handcuffs him. § 87(2)(b) does not tense his body, attempt to pull away, or otherwise resist being handcuffed. At 06:20, PO Essafoui frisks § 87(2)(b) right leg. At 06:55, PO Ramirez frisks § 87(2)(b) front left pants pocket area. At 8:20, after PO Ramirez places § 87(2)(b) in the police vehicle, he frisks his front left pants pocket again. At 11:24, as PO Ramirez and PO Essafoui are trying to look up the I-card again, PO Essafoui states that he does not know where he put § 87(2)(b) ID. At 11:55, PO Ramirez, referring the I-Card on PO Essafoui's phone states, "Why didn't you show me that before?" PO Essafoui states, "I messed up. There's no probable cause." PO Ramirez and PO Essafoui then approach another officer. PO Ramirez says to PO Essafoui, "C'mon, you have to read, bro." PO Essafoui says, "I thought it said probable cause." PO Ramirez replies, "No, bro," then deactivates his BWC **(BR 02)**.

PO Essafoui's BWC footage shows, beginning at 00:00, PO Essafoui standing at the passenger side of § 87(2)(b) vehicle. PO Essafoui checks § 87(2)(b) ID on his phone. At 01:07, PO Essafoui says to PO Ramirez, "92" (Arrest). At 01:55, PO Ramirez reports the vehicle stop over the radio and PO Essafoui tells him again that it's an arrest situation. PO Ramirez does not check his phone or check PO Essafoui's phone to verify the I-Card information prior to placing § 87(2)(b) in the police vehicle **(BR 01)**.

BWC for PO Adekunle shows, at 01:30, § 87(2)(b) is handcuffed next to his vehicle. PO Adekunle tells PO Essafoui to "toss" § 87(2)(b) PO Ramirez and PO Essafoui proceed to frisk § 87(2)(b) legs and pants pockets areas. PO Essafoui reaches towards § 87(2)(b) front left pocket and puts a card on the roof of the vehicle. The footage does not show him entering § 87(2)(b) pocket. At 01:57, PO Essafoui lifts up the front of § 87(2)(b) shirt, exposing his waistband **(BR 03)**.

§ 87(2)(b) statement was somewhat consistent with the BWC footage. On August 4, 2024, at approximately 7:30 PM, § 87(2)(b) and his cousin, § 87(2)(b) both of whom work for Instacart, were driving towards § 87(2)(b) in the Bronx to make a delivery. They passed PO Ramirez and PO Essafoui, who were on foot approximately two blocks from where § 87(2)(b) double-parked his vehicle at the southeast corner of East 177th Street and Morris Avenue. § 87(2)(b) remained in the vehicle while § 87(2)(b) exited to make the delivery. § 87(2)(b) acknowledged that the windows of his vehicle were tinted at 10 percent.

After approximately 15 minutes, PO Ramirez and PO Essafoui approached the vehicle and PO Ramirez, who was standing at the driver's door, immediately ordered § 87(2)(b) to produce his license and registration. § 87(2)(b) refused and asked why he needed to do so. PO Ramirez informed him that his windows were illegally tinted. The officers then asked § 87(2)(b) to lower the front passenger window, but he refused. PO Ramirez then ordered § 87(2)(b) to exit the vehicle but he

refused. PO Ramirez then opened the driver's door and grabbed § 87(2)(b) left arm. PO Essafoui came around the vehicle and grabbed § 87(2)(b) left arm. The officers gave § 87(2)(b) additional orders to get out of the vehicle, but he refused and asked why he needed to do so. § 87(2)(b) let his body go limp so that the officers would have to pull his dead weight. PO Ramirez and PO Essafoui pulled § 87(2)(b) and once his head and arms were out of the vehicle, he decided to exit voluntarily. The officers then ordered him to stand with his back against his vehicle.

PO Ramirez then frisked § 87(2)(b) arms, torso and legs. He then put his hand in § 87(2)(b) left pocket and removed his wallet and a Bic lighter. PO Ramirez then took § 87(2)(b) ID out of his wallet and gave it to PO Essafoui. § 87(2)(b) does not have a driver's license and only has a South Carolina learners' permit. At some point during the interaction, PO Essafoui told § 87(2)(b) that his permit was expired, and that § 87(2)(b) had an I-Card, which § 87(2)(b) was not aware of. The officers ordered § 87(2)(b) to put his hands behind his back and § 87(2)(b) refused, asking why he had to do so. § 87(2)(b) then grabbed his cellphone, which PO Ramirez had placed on top of his vehicle and attempted to call his wife. Officers were speaking to § 87(2)(b) while he was trying to call his wife, though he could not specifically recall what they said. During this time, PO Ramirez drew his taser and pointed it at § 87(2)(b) for "six minutes," until PO Essafoui handcuffed him. Additional officers arrived on scene and PO Ramirez and PO Essafoui placed § 87(2)(b) in the back of a police vehicle. After approximately 15 to 20 minutes, PO Essafoui let § 87(2)(b) out of the vehicle and apologized to him. § 87(2)(b) was not summonsed or arrested and was allowed to leave (BR 06).

PO Ramirez' statement was generally consistent with the BWC footage. PO Ramirez and PO Essafoui, who were working a foot post, observed § 87(2)(b) double park his vehicle on East 177th Street and Morris Avenue. Based on his training and previous experience, PO Ramirez observed that § 87(2)(b) windows were illegally tinted and decided to stop him. PO Ramirez approached the driver's door and asked § 87(2)(b) for identification. § 87(2)(b) was initially reluctant to provide his ID but ultimately did so. PO Essafoui ran § 87(2)(b) ID and discovered that his ID had expired and found what they initially thought was a probable cause I-Card. He heard PO Essafoui say something regarding a warrant, so he and PO Essafoui decided to arrest § 87(2)(b).

He gave § 87(2)(b) a verbal command to exit the vehicle, which § 87(2)(b) refused. PO Ramirez characterized this refusal as "combative" behavior. PO Ramirez issued § 87(2)(b) several additional commands to exit the vehicle, but § 87(2)(b) refused. PO Ramirez initially stated that he had to draw his taser and grab § 87(2)(b) arm to remove him from the vehicle. After reviewing the BWC again, he stated that he did not make any physical contact with or point his taser at § 87(2)(b) to get him out of the vehicle and stated that § 87(2)(b) exited the vehicle voluntarily. After § 87(2)(b) exited the vehicle, the officers told him that he was under arrest. § 87(2)(b) became "combative," which PO Ramirez described as § 87(2)(b) verbally refusing to go with the officers. PO Essafoui grabbed § 87(2)(b) arm and got one handcuff on him and tried to grab his other hand. § 87(2)(b) refused to listen to orders to turn around and put his hands behind his back. At this point, PO Ramirez drew and pointed his taser at § 87(2)(b). PO Ramirez did so to gain § 87(2)(b) compliance. The officers were standing in the street and cars were passing by. As such, PO Ramirez decided to speed up the process by holstering his taser and assisting PO Essafoui in handcuffing § 87(2)(b). § 87(2)(b) then became compliant and allowed the officers to handcuff him. PO Ramirez did not recall § 87(2)(b) verbally threatening the officers or doing anything that would indicate he was a physical threat.

Once § 87(2)(b) was handcuffed, he and PO Essafoui frisked § 87(2)(b). He did not recall if he or PO Essafoui searched § 87(2)(b) pockets but stated that they would be allowed to after they effected the arrest. PO Ramirez did not make any observation that § 87(2)(b) was armed during the incident. He asked PO Essafoui to see the I-Card again. After reviewing it, PO Ramirez and PO Essafoui

realized that it was a suspect I-Card rather than a probable cause I-Card. PO Ramirez contacted his supervisor, who instructed him to complete a vehicle stop report. He and PO Essafoui discussed the situation and decided to release and apologize to § 87(2)(b) without issuing summonses for the tinted windows or the expired permit as they had already inconvenienced him. PO Ramirez verbally offered § 87(2)(b) his name and shield number. He did not have any business cards with him at the time as he had just graduated from the academy two weeks prior (**BR 08**).

PO Essafoui's statement was generally consistent with PO Ramirez' and the BWC footage. § 87(2)(b) was hostile in terms of body language and demeanor, but he did not recall if § 87(2)(b) made any verbal or physical threats. He asked § 87(2)(b) for ID and was handed a driver's license. PO Essafoui observed that the license had expired and ran the information on his phone, which revealed that § 87(2)(b) had an I-Card, which he initially believed gave the officers probable cause to arrest § 87(2)(b). PO Essafoui did not specifically recall what § 87(2)(b) was saying while he was in his vehicle but characterized his demeanor and body language as hostile and combative. He did not recall what § 87(2)(b) was doing physically but stated that he was cursing and shouting. He did not recall whether § 87(2)(b) verbally or physically threatened the officers.

§ 87(2)(b) ultimately exited the vehicle. PO Essafoui did not recall whether he or PO Ramirez had to physically remove him. At some point, PO Ramirez drew and pointed his taser at § 87(2)(b) because he was behaving in an "aggressive" and "combative" manner. When asked to clarify this, PO Essafoui did not specifically recall what § 87(2)(b) was doing but was referring to his demeanor as he was cursing and shouting. PO Essafoui told § 87(2)(b) that he was under arrest due to an I-Card. § 87(2)(b) disputed this and continued to curse and shout. He refused to comply with orders to turn around and put his hands behind his back. § 87(2)(b) tensed his arms and leaned away from PO Essafoui when he attempted to grab his arm to pull it behind his back. He did not recall which arm he grabbed, but did not try to grab § 87(2)(b) other arm due to him deeming it unsafe. § 87(2)(b) stated that he wanted to call his wife. PO Essafoui stated that if he complied with the officers, he would allow § 87(2)(b) to speak to his wife over speaker phone. § 87(2)(b) then complied, and PO Essafoui called his wife on § 87(2)(b) phone. PO Ramirez and PO Essafoui frisked § 87(2)(b) waistband, legs, and ankles. PO Essafoui searched § 87(2)(b) pockets and recovered his wallet. There were no bulges in § 87(2)(b) clothing that indicated he was carrying a weapon. The officers released § 87(2)(b) after determining that he had a suspect I-Card and not a probable cause I-Card. (**BR 09**).

A request to the NYPD for active I-Cards associated with § 87(2)(b) on the incident date yielded negative results (**BR 10**).

Patrol Guide Procedure 221-08 states that Conducted Energy Weapons should only be used against those who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or others. Active resistance is defined as physically evasive movements to defeat a member of service's attempt to control, including bracing, tensing, pushing, or verbally signaling an intent to avoid being taken into custody (**BR 11**).

New York VTL Section 375(12-a) states that the windshield as well as the side windows of a vehicle cannot block more than 30 percent of light (**BR 11**).

New York VTL Section 509 states that no person shall operate a motor vehicle unless they are the holder of the license or permit required to operate such vehicle (**BR 13**).

The "search incident to arrest" doctrine, by its nature, requires proof that, at the time of the search, an arrest has already occurred or is about to occur. Where no arrest has yet taken place, the officer

must have intended to make one if the “search incident” exception is to be applied. People v. Reid, 24 N.Y.3d 615 (BR 14).

§ 87(2)(b) acknowledged that the windows of his vehicle were tinted at 10 percent, exceeding the legal 30 percent limit. Additionally, BWC footage shows that § 87(2)(b) learner’s permit appeared to be expired. § 87(2)(g) It is therefore recommended that **Allegations A and B** be closed as **Within NYPD Guidelines**.

BWC footage shows that § 87(2)(b) exited his vehicle voluntarily and that neither PO Ramirez, nor PO Essafoui used any force to get him to do so. It is therefore recommended that **Allegations C and D** be closed as **Unfounded**.

PO Ramirez acknowledged drawing and pointing his taser at § 87(2)(b) stating that he did so because § 87(2)(b) was being “combative.” Additionally, § 87(2)(b) refused to comply with orders to turn around and put his hands behind his back. However, BWC footage shows that § 87(2)(b) while upset, does not behave in an aggressive or hostile manner. § 87(2)(b) ultimately exits his vehicle voluntarily and initially complies with PO Ramirez’ order to turn around but then turns back around when he understands officers are placing him under arrest. § 87(2)(b) does not verbally or physically threaten the officers at any point. PO Essafoui does grab § 87(2)(b) left arm but does not appear to make any effort to pull it behind § 87(2)(b) back. He then releases § 87(2)(b) arm and shows § 87(2)(b) the I-Card on his phone. PO Essafoui grabs § 87(2)(b) left arm again but does not appear to try to pull it behind § 87(2)(b) back, nor does § 87(2)(b) attempt to pull away from PO Essafoui at any point. Once PO Ramirez holsters his taser and grabs § 87(2)(b) other arm, he immediately complies and allows the officers to handcuff him.

§ 87(2)(g) It is therefore recommended that **Allegation E** be closed as **Substantiated**.

BWC footage shows that § 87(2)(b) provides his ID to the officers, and that neither officer frisks or searches him prior to arresting him. The footage shows that after PO Essafoui checks § 87(2)(b) ID, he informs PO Ramirez that § 87(2)(b) is under arrest. The officers then handcuff § 87(2)(b) and frisk him. The footage does not conclusively show either officer entering § 87(2)(b) pockets. PO Essafoui does lift-up § 87(2)(b) shirt revealing his waistband. After § 87(2)(b) is lodged in the police vehicle, PO Ramirez asks to review the I-Card on PO Essafoui’s phone and determines that it is not a probable cause I-Card. § 87(2)(g)

§ 87(2)(b) BWC footage shows that after § 87(2)(b) is lodged in the police vehicle, the officers acknowledge that the I-Card that PO Essafoui found did not give them probable cause to arrest § 87(2)(b). According to § 87(2)(b) the officers released him 15 to 20 minutes after he was placed in the police vehicle. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **Substantiated**. § 87(2)(g) it is recommended that **Allegation G** be closed as **Within NYPD Guidelines**.

§ 87(2)(g)

It is therefore recommended that **Allegations H and I** be closed as **Within NYPD Guidelines**.

PO Ramirez acknowledged frisking § 87(2)(b) incidental to his arrest. § 87(2)(g)

It is therefore recommended that **Allegations J and K** be closed as **Within NYPD Guidelines**.

Allegation N – Abuse of Authority: Police Officer Jamal Essafoui seized § 87(2)(b) property.

BWC from PO Adekunle shows, at 01:30, § 87(2)(b) is handcuffed. PO Adekunle tells PO Essafoui to “toss” § 87(2)(b) PO Ramirez and PO Essafoui proceed to frisk § 87(2)(b) legs and pants pockets areas. PO Essafoui reaches towards § 87(2)(b) front left pocket and puts a card, possibly § 87(2)(b) ID, on the roof of the vehicle. The officers then put § 87(2)(b) in the back of a police vehicle (**BR 03**).

BWC from PO Ramirez shows, at 11:24, after § 87(2)(b) is placed in the police vehicle. PO Ramirez and PO Essafoui attempt to check § 87(2)(b) ID again. PO Essafoui states twice that he does not know where he put § 87(2)(b) ID. PO Ramirez checks the search history on PO Essafoui’s phone, and the officers deactivate their BWCs once they determine there is no probable cause to arrest § 87(2)(b) (**BR 02**).

§ 87(2)(b) stated that after PO Ramirez and PO Essafoui placed him in the police vehicle, officers allowed § 87(2)(b) to leave with his vehicle. PO Essafoui was the only officer who handled his ID during the incident, and it was not returned to § 87(2)(b) after he was released (**BR 06**).

PO Essafoui’s statement was generally inconsistent with the BWC footage. PO Essafoui recalled saying during the incident that he did not know where § 87(2)(b) ID was, though he denied losing it. He stated that he put the ID back into § 87(2)(b) pocket at some point but did not recall when he did so, though he stated that § 87(2)(b) had his driver’s license when he was put in the RMP (**BR 09**).

PO Ramirez stated that he was not aware of any issue with § 87(2)(b) ID going missing during the incident (**BR 08**).

Patrol Guide Procedure 208-26 states that absent an arrest, property may be held for reasons such as investigatory purposes, if ownership cannot be determined, safekeeping, or for forfeiture.

BWC footage shows that PO Essafoui was the only officer to handle § 87(2)(b) ID during the incident. § 87(2)(g)

§ 87(2)(b) BWC footage captures him telling PO Ramirez after this point that he does not know where he put § 87(2)(b) ID. § 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation N** be closed as **Substantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party.
- PO Essafoui has been a member-of-service for less than one year and this is the first CCRB complaint to which he has been a subject.
- PO Ramirez has been a member-of-service for less than one year and has been named as a subject in two additional complaints and 11 additional allegations, none of which have been substantiated.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of October 18, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**BR 18**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 08

Investigator:	<u>Trevor Hackett</u>	<u>Inv. Trevor Hackett</u>	<u>03/12/2025</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Ethan De Angelo</u>	<u>IM Ethan De Angelo</u>	<u>03/12/2025</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date